BUSINESS ETHICS · PRESENTATION

Planned Obsolescence

A ruling, its proof, and why no defense survives it.

> **Thesis.** A maker may not shorten the useful life of a product he has sold, or take away its owner’s power to keep it working, without the buyer’s knowledge and consent. Doing so is unjust, and the classical rulings against it are sound.

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ORIENTATION

What this talk will do

- **Define the claim exactly**, and say what it leaves out.
- **Show how a moral ruling is proven**, step by step, so you can check each step yourself.
- **Prove the ruling from independent grounds**: consent, harm, ownership. A fourth ground, waste, is offered as support only.
- **Close every escape route** with a complete yes/no tree of defenses.
- **Test the ruling** on four public cases and twenty-four doubts.
- **State the ruling in force**: what is forbidden, what is required, what is permitted.

HOW CERTAIN IS EACH STEP?

CERTAIN every premise is certain and the form is valid.

STRONG sound texts or clear reasoning; a minority objection can be stated.

PROBABLE analogy, or a point scholars dispute; the better view is adopted and named.

SUPPORT ONLY adds weight; the proof does not depend on it.

Rule of the weakest link: a conclusion is never stronger than the weakest step that leads to it.

THE STARTING POINT

Start with one purchase

You pay a price *P* for a device. You expect it to serve you for a time *E*, as devices of its kind ordinarily do. The maker knows, from a design or software decision he took, that it will serve for only *L*, and *L* is less than *E*. Nobody tells you.

$$\text{Shortfall} = P \times (1 - L / E)$$

If the device serves half as long as expected, half of the price bought nothing. The formula is only arithmetic: *P*, *E* and *L* are variables, and this talk claims no numbers for them.

Did you consent to pay for *E*?
Yes. You paid because you believed in it.

Did you receive what you paid for?
No. You received *L*.

Who could have prevented the gap at no cost?
The one who knew: the maker.

THE CLAIM

What exactly is planned obsolescence?

> **Definition.** Planned obsolescence is a choice, made by the maker, that shortens the useful life of a product he has sold, or removes its owner's power to extend that life.

THREE WORDS THAT MATTER

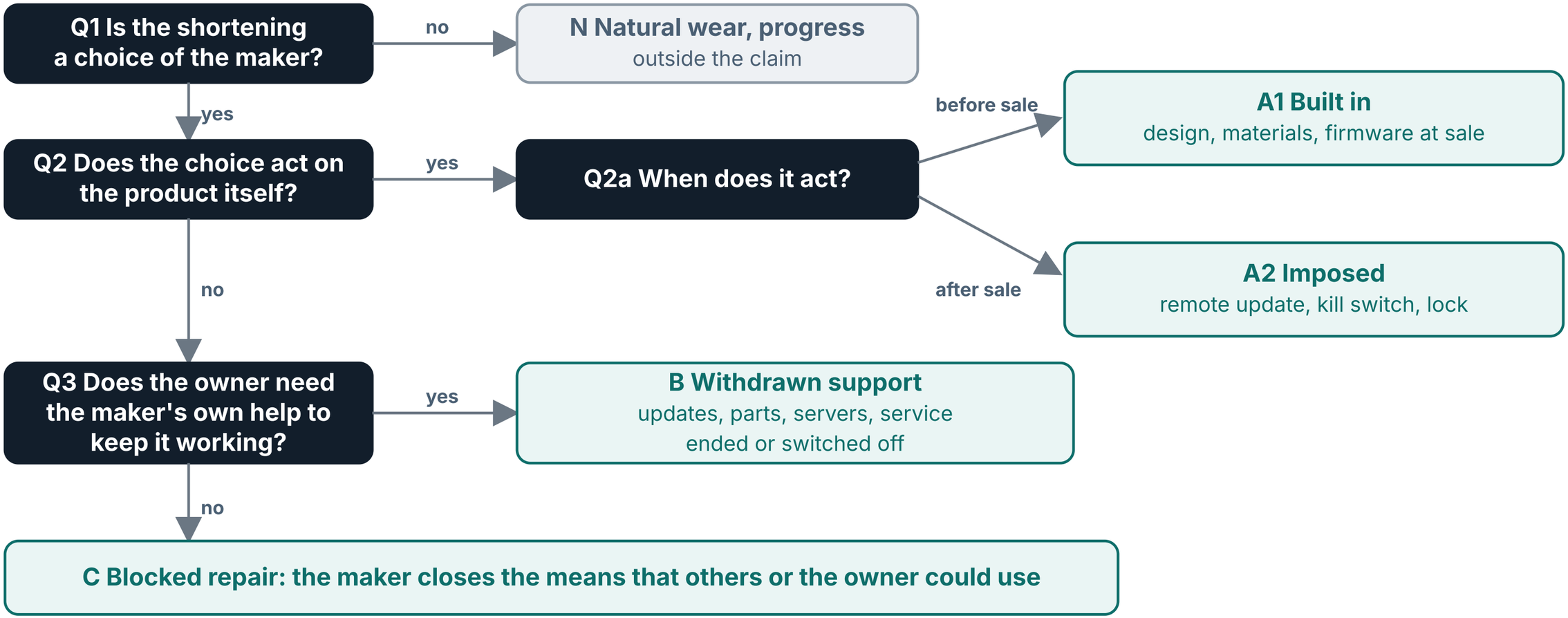
- **Choice.** An accident, or a flaw the maker did not know of, is not planned.
- **Maker.** The one who designs, sells, updates, supports or controls the parts and tools.
- **Useful life.** Durability plus maintainability: how long it works, and how long its owner can keep it working.

WHAT THE CLAIM LEAVES OUT

- **Natural wear** and accident: time, not a choice, ends the life.
- **Real progress:** a better new device leaves the old one unchanged.
- **Changing taste:** fashion alters desire, not the old device.
- **An honest short life:** a product whose short life the buyer knows about when he buys it.

THE MAP

A maker can cut a product’s life in four places



Every question is a yes/no split, so no case can fall between branches, and no case enters two. A case with several mechanisms is split into its mechanisms; each goes to one leaf.

THE MAP

The four leaves, in plain terms

Leaf	What the maker does	What the owner loses	What the maker knows
A1	Builds the product so that it fails or wears early: a filament, a sealed battery, a part with a short rated life.	The years he believed he was buying.	The life he designed.
A2	Changes the device after the sale: a software update that slows it, a switch that stops it.	Speed, function, or the device itself, on a thing he owns.	What the update does, and that the owner did not ask for it.
B	Ends the support the device needs: security updates, spare parts, the online service it depends on.	A working device that becomes useless or unsafe.	The date support will end.
C	Keeps the means of repair to himself: reserved tools, parts that refuse to work unless paired, private manuals.	The power to fix it himself or through anyone else.	That he alone holds the key.

In all four, the buyer paid for a life he believed in, and the maker knew more than he did.

THE MAP IN USE

One product, three mechanisms, three separate verdicts

An invented illustration (no company, no data). A maker sells a phone. **(1)** The battery is glued in and rated for a number of charge cycles that the maker knows ordinary use will exhaust long before the phone's other parts age; the box says nothing. **(2)** The case uses a screw head and a pairing chip that only the maker's service centers can obtain. **(3)** The maker will stop updates on a fixed date, which is printed on the box.

Mechanism	Leaf	The test	Verdict
(1) Sealed battery with an unstated rated life	**A1**	F1–F3 hold. No disclosure (D2 fails). Not a necessity (D3 fails): the limit could be printed.	**Forbidden** as sold. Cure: state the rated life.
(2) Parts and tools reserved to the maker	**C**	Not disclosed; no stated safety need; the owner cannot repair what he owns.	**Forbidden** unless a narrow safety reason is stated.
(3) Updates end on a printed date	**B**	Disclosed before sale; the phone keeps working.	**Permitted.**

The map's rule at work: a case with several mechanisms is split, and each mechanism is judged alone. The same maker can be right about (3) and wrong about (1) and (2).

THE METHOD

How a moral ruling is proven here

1. Name the act exactly. (Done: the map.)
2. State the norms the ruling rests on, each with **a reason anyone can check**.
3. Show where the classical jurists ruled on the same norm, with their texts and the grade of each text.
4. Apply the norms to each leaf and state the conditions under which they bind.
5. Close the proof: list every possible defense in a **complete yes/no tree** and answer each.
6. Mark the certainty of each step. The weakest step sets the strength of the whole.

WHY REASONS COME FIRST

A reader who does not accept a text cannot be moved by it. He can be moved by a premise he already holds.

So each norm is first shown to be one that its denier would have to give up everything else to refuse. The classical texts then confirm the norm and fix its details.

WHAT A CLASSICAL JURIST DOES WITH A NEW CASE

He finds the decided case that shares the *cause* (*ʿilla*) of the ruling, and extends the ruling by analogy (*qiyās*). A new case needs no new rule, only the old reason.

THE PROOF AT A GLANCE

Three facts, three norms, one ruling

FACTS OF THE CASE

F1 The maker knows the limit he put on the product’s life or repair.

F2 The buyer does not know it.

F3 The price was set for the life the buyer ordinarily expects.

NORMS

N1 Consent. Wealth passes from one person to another only by informed consent.

N2 Harm. No one may gain by another’s loss without a right.

N3 Ownership. The owner alone governs use, repair and disposal.

N4 Waste. Usable value may not be destroyed for no benefit.

(support only)

RULINGS

R1 Concealing the limit is forbidden.

R2 Changing or disabling a sold device, or blocking its repair, without informed consent is forbidden.

R3 The one who knows the limit must disclose it.

R4 The wronged buyer has a remedy.

Where F1 to F3 are absent, there is no planned obsolescence and the ruling does not apply. The proof is conditional on the facts, and the facts are checked case by case.

PRINCIPLE 1 · CONSENT

A “yes” needs knowledge behind it

Imagine a baker who mixes an ingredient, not on the label, into his bread so that it goes stale in a day. You paid for bread that keeps. Tomorrow you must buy again. Would anyone call that a fair sale?

THE NORM

> **N1.** Wealth passes from one person to another only by informed consent.

“Informed” means the buyer knew the facts that set the price, or could not have missed them.

TRY TO DENY IT

- Then a seller may promise one thing and hand over another, and the payment still counts as agreed.
- Then a price tells the buyer nothing about what he gets.
- Then no one could rationally pay in advance for anything.

So N1 is not an extra rule laid on trade. It is what makes a price mean something. Whoever denies it has already stopped trading.

PRINCIPLE 1 · CONSENT

Proof: concealing the limit takes part of the price without consent

1.1	A buyer pays a price because he believes the product will give him a benefit for a time *E*.
1.2	The maker knows the product will give that benefit only for *L*, and *L* < *E*. (fact F1)
1.3	The buyer formed *E* from what such products ordinarily give, and from the maker's silence. (F2, F3)
1.4	So the buyer agreed to pay for *E*. He did not agree to pay for *L*. (from 1.1, 1.3)
1.5	Wealth taken beyond what was agreed is taken wrongly. (N1; Qur'an 4:29)
1.6	**Therefore the part *P* (1 – *L*/*E*) was taken wrongly.** CERTAIN

Leaf	What the buyer expects (*E*)	What the maker delivers (*L*)
A1	The ordinary life of such a device	The designed life
A2	The performance he bought	The performance after the update
B	Support as long as the device itself works	Support until the maker's chosen date
C	The power to repair what he owns	A repair path closed by the maker

Certain *given* the facts F1 to F3. Whether a particular case has those facts is a matter of evidence, not of principle.

What the classical texts say

Text	Source and grade	What it settles
Do not consume one another's wealth unjustly, but only in trade by mutual consent.	Qur'an 4:29; see also 2:188	Wealth moves by consent.
Whoever deceives us is not one of us. وَمَنْ غَشَّنَا فَلَيْسَ مِنَّا	Sahih Muslim 101 (Abū Hurayra). Sahih	Deceit in dealings is a grave wrong.
The Prophet found wet grain under dry grain and said: *"Why did you not put it on top, so that people could see it? Whoever deceives is not of me."*	Sahih Muslim 102 (Abū Hurayra). Sahih	What a buyer would care to see may not be hidden, even if he could not have found it himself.
Buyer and seller keep the option until they part; *if they are truthful and make clear (the defects), their sale is blessed; if they lie and conceal, its blessing is erased.*	Sahih al-Bukhārī 2079 (Ḥakīm ibn Ḥizām). Sahih	Disclosure is the condition of a sound sale.
It is not lawful for a Muslim to sell his brother goods with a defect without pointing it out.	Sunan Ibn Mājah 2246 (ʿUqba ibn ʿĀmir). Sahih (al-Albānī; Darussalam)	The duty to disclose rests on the seller.

STRONG **Why not certain?** The texts are sound and explicit about deceit and defects. Applying them to a hidden *limit on life* is the step that needs the next two slides.

Texts checked on prophetmuhammad.com, ihadis.com and islamtics.com; quotations are translations, shortened where marked. Qur'an 4:29 and 2:188 checked on quran.com.

What the jurists and the Mecelle add

THE RULINGS OF THE SCHOOLS

- Gain obtained by *tadlīs* or *ghish* (hiding a defect, or showing a quality that is not there) is forbidden gain. (TDV, “Tağrîr”)
- The deceived buyer may rescind (Mālikīs, Shāfiʿīs, Ḥanbalīs and others). Abū Ḥanīfa and Muḥammad prefer compensation for the loss. (TDV, “Hile”)
- The ruler may punish the deceiver by *taʿzīr*; scholars agree on this. (TDV, “Hile”)
- A *defect* (*ʿayb*) is what lowers the value of the goods in the eyes of the experts (Mecelle 338). The Shāfiʿīs also count a shortfall that frustrates the buyer’s legitimate purpose. (TDV, “Ayıp”)

THE MECELLE’S MAXIMS ON THE SAME POINT

- **Art. 67.** No statement is attributed to a silent person, but silence at the place where need calls for speech is a statement.
- **Art. 43–44.** What is known by custom is as if stipulated; what is known among merchants binds them as if agreed.
- **Art. 3.** In contracts, meaning counts, not wording.

> A hidden limit on life lowers the value in expert eyes, frustrates the purpose of buying, and is silence where speech was needed. It meets all three tests.

Mecelle article numbers and wording: Ali Hikmet Berki’s annotated edition as reproduced by M. Balcı; art. 338 and the ayb rules: TDV İslâm Ansiklopedisi, “Ayıp” (md. 336–355).

PRINCIPLE 1 · CONSENT

From the udder to the device: the classical analogy

THE DECIDED CASE (*AṢL*)

A seller keeps an animal unmilked for days so that its udder looks full. The Prophet (peace be upon him) forbade it; the buyer may milk, then keep the animal or return it. Sahih al-Bukhārī 2148; Sahih Muslim 1515

THE CAUSE (*ʿILLA*)

The seller creates a false appearance of a quality that sets the price, and the buyer relies on it.

THE NEW CASE (*FARʿ*)

The maker hides a limit on the product's life; the price was set for a life the product does not have, and the buyer relies on the silence.

Ruling carried over: forbidden, with the buyer's option to rescind or be compensated.

- What the udder hides is **yield**. What the design hides is **life**. Both are qualities the buyer pays for and cannot see.
- The texts forbid the *appearance*, not the animal. The cause is therefore not special to livestock.
- No new principle is introduced. The old principle meets a new object.

STRONG Analogy from sound texts, plus the general texts on the previous slides.

Where the principle stops, and the best objection

BOUNDARIES: NO CONCEALMENT WHERE

- **The limit was disclosed** in plain words, before the sale, where a buyer would see it.
- **The buyer knew it and accepted it.** He then has no option to rescind. (TDV, “Ayıp”) A limit any ordinary buyer would see at once is not hidden.
- **The limit is the known norm** of that kind of product, so no ordinary buyer expects more (Mecelle 41–42: custom counts only when it is settled and prevailing).

Conditions that must hold for the ruling to bind: the maker knew; the buyer did not; the shortfall is material; the buyer relied on the ordinary expectation.

Objection

“The buyer could have asked. It is his duty to check.”

Reply

Where the matter is one the buyer needs to know, silence is itself a statement (Mecelle 67). And in the grain-heap case the owner is blamed for not showing the wet grain although the buyer could not see it. The duty lies on the one who knows, and a hidden limit is exactly what the buyer cannot find by looking.

PRINCIPLE 2 · HARM

Gain may not be bought with another’s loss

Imagine a factory owner who saves money by letting his waste run into his neighbors’ wells. The land is his and the profit is his. Does that make it right?

THE NORM

> **N2.** No one may gain by another’s loss without a right to do so.

A “right” here is a ground that survives questioning: the other’s informed consent, a real necessity, or an entitlement that does not itself take another’s right. The defense tree later lists all of them.

WHY IT APPLIES HERE

- The buyer loses the part of the price that bought nothing (Principle 1).
- He also loses time and effort: he must buy again, earlier than he planned.
- The maker’s gain comes *from* that loss: the sale is brought forward, or the repair market is kept.

The test of connection: remove the maker’s choice. If the buyer would not have lost, and the maker would not have gained, the harm is the maker’s doing.

PRINCIPLE 2 · HARM

Proof: the harm is real, caused, and without a right

2.1	The usable life of a product the buyer owns has value to him. (he paid for it)	
2.2	A choice by the maker removes part of that life, or part of the owner’s power to keep it. (definition; F1)	
2.3	But for that choice the owner would have kept it. (test of connection)	
2.4	The owner did not consent to the loss. (F2, Principle 1)	
2.5	The maker gains, or at least keeps, a market that the loss opens or protects. (replacement, repair monopoly)	
2.6	Absent consent, necessity or an entitlement, a gain made this way is without right. (N2; defenses tested later)	
2.7	**Therefore the choice is harm, and harm is to be removed and made good.**	**STRONG**

Step 2.5 is not needed for the wrong itself: a cost-cutting maker who gains nothing from the shortened life still harms. It is needed only to answer the claim that the harm is a by-product.

Strong rather than certain because step 2.6 depends on the defense tree on later slides: the tree has to hold.

What the classical texts and the Mecelle say

THE TEXT

لَا ضَرَرَ وَلَا ضِرَارَ

There is to be neither harming nor reciprocating harm.

- Sunan Ibn Mājah 2340 (ʿUbāda ibn al-Ṣāmit) and 2341 (Ibn ʿAbbās); Mālik, *al-Muwaṭṭaʾ*; al-Nawawī, Forty Ḥadīth no. 32 (Abū Saʿīd al-Khudrī).
- **Grade, stated honestly:** al-Nawawī calls it *ḥasan* through several chains. al-Albānī calls both *ṣaḥīḥ*; Shuʿayb al-Arnaʾūṭ calls both *ṣaḥīḥ li-ghayrihi*; Darussalam and Zubair ʿAlī Zaʾī call both weak.
- The Qurʾan rejects harm of this shape elsewhere: *"do not retain them to harm them"* (2:231).

THE MECELLE'S MAXIMS

- **19.** No harm, and no answering harm with harm.
- **20.** Harm is to be removed.
- **30.** Repelling a mischief comes before gaining a benefit.
- **87–88.** Burdens go with benefits: the one who gains bears the cost.
- **92.** A direct actor is liable even without intent.
- **93.** One who only causes the loss is liable only if he intended it.

> The word *planned* supplies the intent that art. 93 asks for.

Gradings: islamtics.com (Ibn Mājah 2340, 2341) and sunnah.com's Nawawī-40 entry as reported in search summaries; quran.com for 2:231. Mecelle: Berki/Balcı text.

Where the principle stops, and the best objection

DIRECT ACTOR OR CAUSE?

- **A2** (an update changes the owner's device): the maker is the *direct actor*. Liable even without intent (art. 92).
- **A1, B, C** (a design, a withdrawal, a closed repair path): the maker is the *cause*. Liable if intended (art. 93), and planned obsolescence is by definition intended.

BOUNDARIES

- The harm must be an actual shortfall against a reasonable expectation, not a lost chance of profit.
- Natural aging is not harm done by anyone. Only the part caused by the maker's choice counts.

Objection

"All products lose value over time. Where is the harm?"

Reply

The claim is not that products age. It is that a *choice* shortened the life, and the test of connection separates the two: without the choice, the owner keeps the product. Aging that no one chose passes the test and is outside the claim; a firmware limit or a sealed part does not pass it.

PRINCIPLE 3 · OWNERSHIP

To own is to be able to use and to maintain

Imagine you buy a car, but the dealer keeps a switch that stops it unless he approves each repair. Did you buy a car, or the right to ask for one?

THE NORM

N3. A buyer who has paid the price owns the thing and alone decides how it is used, repaired and disposed of.

WHY YOU ALREADY HOLD IT

- If the seller keeps the decisions, he never sold: he leased, and should have called it a lease and priced it as one.
- If a thing you paid for can be stopped, slowed or locked by someone else at will, then “yours” means nothing in practice.
- The word *sale* promises more than a license to use.

PRINCIPLE 3 · OWNERSHIP

Proof: remote control of a sold thing needs the owner’s permission

3.1 A sale transfers ownership of the thing and of its benefit to the buyer. (what “full ownership” means in the fiqh)

3.2 The owner may use, alter, repair, consume and dispose of what he owns as he wishes, short of harming others. (Mecelle 1192, 1197)

3.3 No one may act in another’s property without his permission, nor take it without a lawful ground. (Mecelle 95–97)

3.4 What the seller has completed on his side he may not undo. (Mecelle 100)

3.5 Slowing, disabling or locking a sold device, or closing its repair, is acting in the owner’s property or undoing a completed sale.

3.6 **Therefore it is forbidden unless the owner gave a real, informed permission.** STRONG

The text of 3.4 is Mecelle 100: *whoever tries to undo what is completed on his side, his effort is rejected.*

Mecelle 95–97, 100: Berki/Balcı text. 1192 and 1197: as cited in TDV İslâm Ansiklopedisi, “Mülkiyet”. Strong rather than certain: step 3.5 classifies acts, and 3.2 has limits discussed on the next slide.

The contract defense, and what the schools say about conditions

THE DEFENDER'S BEST TEXT

Muslims are bound by their conditions, except a condition that makes the lawful unlawful or the unlawful lawful. Sunan Abī Dāwūd 3594; Jāmiʿ al-Tirmidhī 1352 (*ḥasan ṣaḥīḥ*)

The text is real, and it binds. The question is what it covers: a condition the buyer **knew** and **freely accepted**. A hidden term is not a condition he accepted.

THE SAME TEXTS, THE STRICTER READING

Whoever stipulates a condition that is not in God's Book, it is void. Sahih al-Bukhārī 2155 (Barīra)

THE SCHOOLS ON RESTRICTIVE CONDITIONS

School	View, in short
Ḥanafī	Classes conditions as valid, defective or void. A condition that the buyer may not resell is **void**; the sale stands.
Shāfiʿī	Leans to restricting conditions in contracts.
Mālikī, Ḥanbalī	Lean to freedom: conditions stand unless something forbids them (Ibn Taymiyya: freedom is the rule).

> **Our ruling holds under every school:** a *concealed* restriction is invalid in the strict schools and is no condition at all in the broad ones, because it was never known or accepted.

Tirmidhī and Abū Dāwūd texts and grades checked on prophetmuhammad.com; Bukhārī 2155 likewise. Schools: TDV İslâm Ansiklopedisi, "Şart (fürû-i fıkıh)".

Where the principle stops, and the best objection

BOUNDARIES

- The owner’s rights end where they harm others (Mecelle 1197, per TDV). He may not use a device to hurt a neighbor.
- An owner may **choose** a restriction: automatic security updates, a repair partner, a lease. The ruling concerns restrictions he did not know and did not choose.
- Where the maker really keeps ownership, he may keep control. Then the price must be a rent and the word must be *lease* (*ijāra*).

Objection

“Software is licensed, not sold. The device is only the carrier.”

Reply

In a contract, meaning counts, not wording (Mecelle 3). If the buyer pays a price for permanent possession of a device that cannot work without the software, the contract is a sale of a working device, whatever the label says. A label cannot turn a sale into a lease after the money has changed hands.

PRINCIPLE 4 · WASTE

Usable value may not be destroyed: offered as support only

Imagine a shopkeeper who cracks every plate he sold, a month after the sale. Nobody gains from the broken plates except the one who sells new ones.

THE NORM

N4. Usable value may not be destroyed for no benefit.

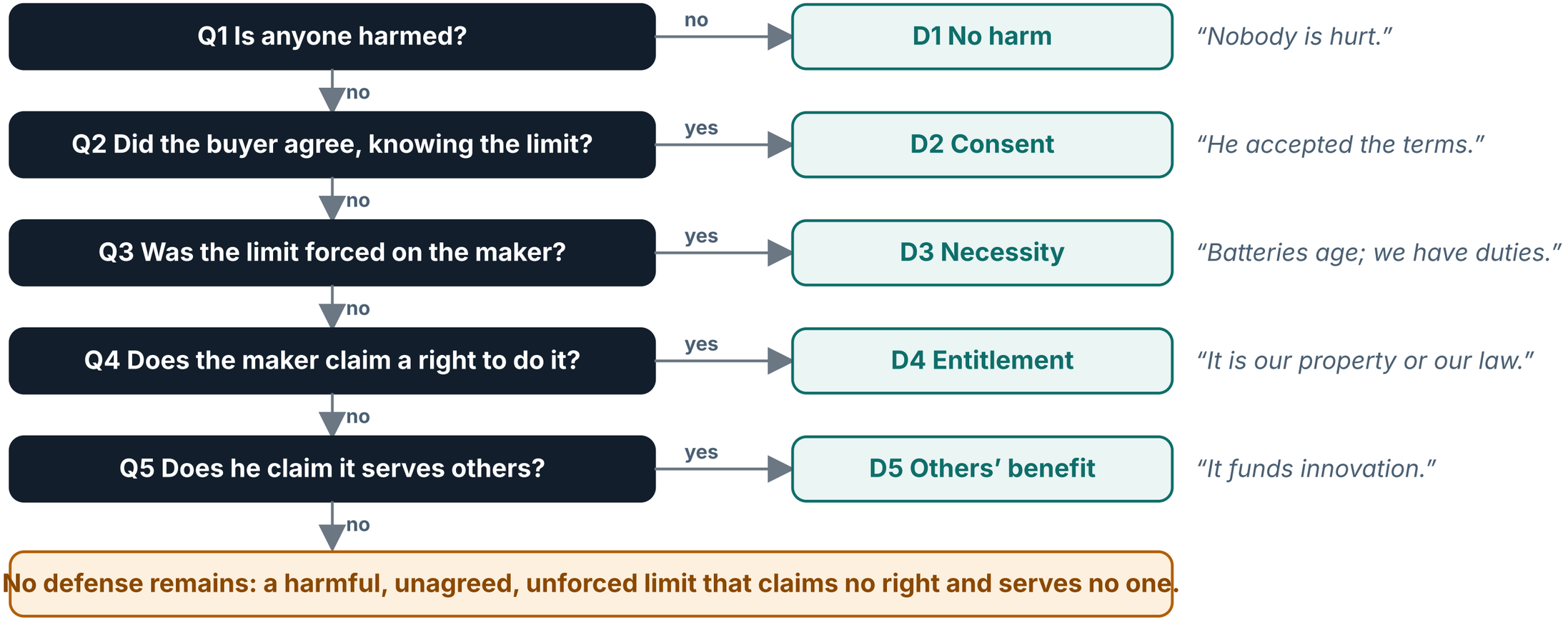
WHAT THE TEXTS GIVE, AND WHAT THEY DO NOT

- *"Do not spend wastefully. Indeed, the wasteful are brothers of the devils."* Qur'an 17:26–27.
- The Prophet said that God **dislikes** for us *wasting wealth* (*iḍāʿat al-māl*). Sahih al-Bukhārī 2408 and Sahih Muslim 593. Al-Bukhārī places it under the chapter heading *"What is forbidden of wasting wealth."*
- But the hadith's verb is *dislikes*, not *forbids* (one Muslim narration says *forbade*), and the classical discussion is mostly about spending one's *own* wealth. The jurists differ on whether it is forbidden or disliked.

SUPPORT ONLY **We do not rest the ruling on this.** The three earlier norms carry the proof. N4 adds weight where the destruction is chosen, serves no one but the destroyer, and is repeated at scale.

Wording and gradings checked on prophetmuhammad.com (Bukhārī 2408, Muslim 593) and quran.com (17:27); TDV İslâm Ansiklopedisi, "İsraf" for the jurists' difference.

Every defense falls into one of five places



Each question is a yes/no split. A defense must answer “yes” at one of Q1–Q5, or it has no place to stand. Q4 and Q5 are asked in that order, so a defense that claims both a right and a benefit is split into its two claims.

CLOSING THE EXITS

Why the tree is complete: twelve defenses, each placed

The defense as it is usually spoken	Where it falls	Remark
“Nobody is hurt; he would have replaced it anyway.”	**D1 No harm**	A guess about a choice that concealment took away.
“The price was low.”	**D1 No harm**	A low price lowers a buyer’s expectation only if he knows.
“It was in the terms and conditions.”	**D2 Consent**	Tested by what an ordinary buyer saw and understood.
“Everyone does it; buyers know.”	**D2 Consent**	Consent by custom, if the custom is settled and known.
“He clicked ‘accept’ on the update.”	**D2 Consent**	Consent after the sale.
“The buyer could have gone elsewhere.”	**D2 Consent**	Means he was free to refuse; asks whether he knew.
“Batteries age and security demands it.”	**D3 Necessity**	Nature and duty.
“It is our property, our patent, our license.”	**D4 Entitlement**	A claimed right.
“It is legal where we sell.”	**D4 Entitlement**	A permit claimed as a right.
“It funds innovation, jobs and cheap goods.”	**D5 Benefit**	A good claimed for others.
“We never meant harm.”	**Outside the claim**	If it was not a choice, it is not planned; if it was, intent is present (art. 93).
“A supplier did it.”	**Outside the claim**	If the maker did not know, it is not planned; once he knows and ships it, it is his choice.

The test of completeness: bring any defense not listed. If it fits none of D1–D5 and is not a denial that the act was planned, the tree must be extended. None has been found. The shape of defenses (deny the wrong, permit it, excuse it, justify it by a right, justify it by a good) is argued, not counted, so the tree is **STRONG**.

DEFENSE 1

“Nobody is harmed”

The claim	The answer
“He would have replaced it anyway.”	That guesses at a choice which the concealment took from him. A simple test: tell him. If he would buy anyway, telling costs nothing; if he would not, he was harmed.
“The product was cheap.”	A low price lowers the expectation of a buyer who knows. It cannot turn a belief he holds into the maker’s smaller delivery. The shortfall formula is proportional at every price.
“It still works for ordinary use.”	“Ordinary use” is then the maker’s own minimum. Harm is measured against what a buyer ordinarily expects, not against what the maker finds enough.
“New devices are better, so he gains.”	A better device he must buy does not return the money paid for the old one. A loss is not cancelled by a gain he did not choose.

REJECTED **Defense 1 fails.** It denies the harm that Principles 1 and 2 establish.

DEFENSE 2

“The buyer agreed”: the test of consent

a	Was the limit disclosed before the sale, in plain words, where an ordinary buyer would see it? **Yes: consent.**
b	If not, is it the publicly known norm of this kind of product, so that no ordinary buyer expects more? **Yes: consent by custom.**
c	If not, did the buyer later accept it knowingly, specifically, and with a real option to refuse and keep the device as it was? **Yes: consent, for what he knew.**
d	**If none: no consent. The limit was concealed.**

WHY EACH TEST IS FAIR

a follows the grain-heap rule: what a buyer cares to see must be placed where he can see it (Muslim 102).

b follows Mecelle 41–45: custom binds when it is settled, prevailing and known.

c follows N1: consent is to a known thing, freely given.

The burden of showing a, b or c lies on the maker, who holds the facts; the buyer need only show the shortfall. (compare Mecelle 76: the proof is on the claimant, and here the maker claims consent)

DEFENSE 2

Hard cases of consent

The claim	The answer	Verdict
“It was in the terms and conditions.”	A term in pages no ordinary buyer reads, at the moment of buying, is not seen. The test is test a above, not the existence of a document.	REJECTED
“Everyone does it, so buyers know.”	Custom counts when settled and known (Mecelle 41–42). If it is known, there is no deception and the maker is right. If it is not known, universal concealment multiplies the wrong and gives the buyer nowhere to go.	RIGHT ONLY IF KNOWN
“He clicked ‘accept’ on the update.”	A yes given to keep what he already owns working is not free. Consent must name what the update does, and refusing must leave his device as it was.	ONLY IF SPECIFIC AND FREE PROBABLE
“He bought the budget model.”	He consented to the lower price he saw. A limit the maker did not state is not part of what a cheaper price tells.	REJECTED
“The warranty period was stated.”	A warranty is a promise about repairs, not a statement of how long the product is expected to work. A design that fails just after the warranty is still hidden.	REJECTED
“He could have bought elsewhere.”	The question is not whether he could leave. It is whether he knew. A free buyer who does not know has not consented.	REJECTED

DEFENSE 3

“It was forced on us”

The claim	The answer
Nature: “Batteries age; materials wear.”	Agreed, and outside the claim (the map, N). Necessity can excuse a limit; it never excuses hiding it. A slowdown with an engineering reason, disclosed, is honest; the same slowdown, silent, is the wrong.
Duty: “We are bound by safety and security rules.”	A real duty justifies the act only to its measure (Mecelle 22), ends when the excuse ends (23), and does not cancel another’s right (33). The maker can protect the buyer *and* tell him, and give him the choice.
Cost: “We cannot support a product forever.”	True. Hardship brings ease (Mecelle 17), so the maker may end support. It does not follow that he may disable a working device or close others’ help. He gives notice; he leaves the device working; he does not block those who can repair it.

ACCEPTED IN PART **Defense 3 saves the limit, not the concealment.** Where a limit is genuinely forced, the ruling asks only that the maker disclose it and offer the choice.

DEFENSE 4

“It is our right”

The claim	The answer
Property: “We own the software, the design, the brand.”	He owns his design. He does not own the buyer’s device. A right to guard his design is a right over copying, not a right to control a thing already sold (Mecelle 96, 100).
Security: “Locks protect users.”	A real security reason can be stated, limited to what it needs, and left to the owner’s choice. A lock that serves only the maker’s repair business is not a security reason.
Contract: “He agreed to our license.”	Back at Defense 2. A condition counts only if it was known and freely accepted, and the schools void restrictions on the buyer’s own thing (Principle 3).
Law: “It is legal where we sell.”	A permit changes what a court will enforce, not whether the buyer was wronged. The ruling here concerns the act, and a permit is not a reason.

REJECTED **Defense 4 fails** wherever the claimed right is taken from the buyer. Where the maker keeps ownership and says so, the answer is a lease, which is lawful.

DEFENSE 5

“It serves others”

The claim	The answer
“It funds innovation.”	Real innovation sells by being better, openly. And a benefit that is only hoped for does not outweigh a loss that is certain (Mecelle 4: doubt does not remove certainty; 74: a mere imagining is not counted).
“A private harm is tolerated to repel a public harm.” (Mecelle 26)	That maxim needs a public harm that is real and a private harm that is the least way to repel it. Planned obsolescence repels none: it adds waste.
“It keeps jobs and prices low.”	Repelling mischief comes before gaining benefit (Mecelle 30). And gain taken by concealment is not lawful gain, whoever else profits (Qur’an 4:29; Muslim 101).
“Banning it would slow progress.”	Whether a ban speeds or slows innovation is an empirical question. The ruling does not depend on its answer, and the ruling forbids concealment, not short-lived products.

REJECTED **Defense 5 fails.** A good for others does not license deceiving this buyer.

THE RULING

The ruling, leaf by leaf

Leaf	Concealed, or imposed without informed consent	Disclosed and freely accepted	What the maker must do	Mark
A1	**Forbidden** (deceit). The buyer may rescind and recover the price, or be compensated for the shortfall.	Permitted. A short-lived product honestly described is a lawful sale.	State the designed or rated life where the buyer sees it.	STRONG
A2	**Forbidden** (an act on another's property, and deceit). The owner may demand restoration and compensation.	Permitted if the consent names the effect and the owner can refuse and keep the device as it was.	Say what the update does. Offer the choice.	STRONG
B	**Forbidden** to disable a working device or break a stated promise of support (for example, a "lifetime" service).	Ending support is permitted: hardship brings ease (art. 17).	Announce the end date at sale, or in good time. Leave the device working. Do not block others who can help.	STRONG
C	**Forbidden** to close the owner's means of repair in secret.	**Disputed among the schools** (void in the strict ones, valid in the broad ones). We adopt the narrow rule: only a stated, specific safety need.	Do not forbid others from repairing what the owner owns. He need not supply every part.	PROBABLE

Remedies for all leaves: rescission or compensation for the buyer (the schools differ on which: TDV, "Hile"); restoration where the maker changed the device; *taʿzīr* by the ruler, on which the scholars agree. The buyer must not have known of the limit, must not have accepted it after finding out, the limit must have affected the price, and the maker must have acted knowingly.

Remedies and conditions: TDV İslâm Ansiklopedisi, "Hile" and "Ayıp". Mecelle 17: Berki/Balcı. The narrow rule for C is our adoption of the stricter school view, marked probable for that reason.

THE RULING

What the maker must do, may do, and may not do

MUST

- Tell the buyer the designed or rated life, and the support period, where he can see it.
- Name what an update does before it touches the owner’s device, when it reduces a function.
- Offer a real choice when a protective measure costs performance.
- Announce the end of support in good time.

MAY

- Sell short-lived goods, if they are honestly described.
- Sell budget models and premium models side by side.
- End support with notice; leave devices working.
- Lease, if it is called a lease and priced as one.
- Install improving updates under a general advance consent the owner gave and can withdraw.

MAY NOT

- Hide a limit he knows of.
- Slow, disable or lock a sold device without informed consent.
- Switch off a service on which a working device depends and which was promised for its lifetime.
- Reserve the means of repair so that the owner cannot fix what he owns, beyond a narrow stated safety need.

Nothing here requires a product to last long, to be repairable by everyone, or to be supported forever. It requires only that the buyer know and the owner remain in charge.

TESTING THE MAP

Four public cases, placed on the map

Case	Leaf	What the tree shows
Phoebus bulb cartel, 1925–1939	**A1**	A collective choice to hold bulb life at a set number of hours. Whether buyers were told, and whether the engineering trade-off was real, decides the verdict.
Apple iPhone throttling, 2016–2020	**A2**	A real engineering reason (necessity, partly accepted). The wrong lies in the missing disclosure and choice. The 2018 fix is the remedy this ruling prescribes.
Revolv hub shutdown, 2016	**B**	A working device made useless by switching off the service it needs, after a “lifetime” promise.
John Deere repair tools, 2025–2026	**C**	Repair means reserved to the maker’s dealers. An agreed order, not a finding, ends the case.

What these cases are for. They test whether the map can place real events, and show how the tree answers each. They do not prove the ruling; the ruling stands on the principles. Facts are taken from the cited records, and where the record is disputed, the slide says so.

CASE · A1

Phoebus, 1925: a bulb life agreed between makers

THE RECORD

- Phœbus S.A. was incorporated in Geneva on 15 January 1925. Members included Osram, Philips, Tungsram, Associated Electrical Industries and General Electric (through its overseas companies).
- It set the life of a household bulb at **1,000 hours**. Sources give the earlier norm as 1,500–2,000 or 2,500 hours.
- Members sent samples for testing and paid fines when their bulbs lasted longer than the standard.
- Krajewski's reconstruction reports the average life of a reference bulb falling from about 1,800 hours (1926) to about 1,205 hours (1933–34).
- The cartel ended around 1939. The UK Monopolies Commission (1951) rejected the charge of planned obsolescence, saying there is "no absolutely right life"; engineers note that a hotter filament gives more light and burns out sooner.

THROUGH THE TREE

Q1	A choice of the makers. Yes.
Q2	Acts on the product itself, before sale. **A1.**
D1	Harm? Yes, if buyers expected longer life.
D2	Disclosed? **Not established in the sources.**
D3	Forced? The light-and-life trade-off is a real necessity **if disclosed**.

> **Verdict.** The ruling does not depend on motive. It asks whether buyers were told and whether the trade-off was real. A cartel adds a second wrong, since it removes the alternative that might have given buyers a better product.

Sources: Wikipedia, "Phoebus cartel" (members, 1,000-hour standard, fines, 1951 commission); M. Krajewski, "The Great Lightbulb Conspiracy," IEEE Spectrum, 2014 (figures as quoted in secondary summaries; the article itself was not opened).

CASE · A2

Apple, 2016–2020: a protective slowdown

THE RECORD

- Late 2016: some iPhone 6 and 6S units shut down unexpectedly. Early 2017: iOS 10.2.1 added power management to cut shutdowns.
- 18 December 2017: a benchmark developer published evidence of slower performance on updated phones.
- About 20 December 2017: Apple confirmed that it limits peak performance according to battery health, *"to prevent the device from unexpectedly shutting down."* On 28 December it apologized and cut the battery replacement price from $79 to $29.
- 2018 (iOS 11.3): battery health display added, and the limit can be switched off.
- France fined Apple €25 million (Feb 2020) for omitting information. In the US, Apple settled a $500 million class case (Feb 2020) and paid $113 million to 34 states and DC (Nov 2020), without admitting wrongdoing. Apple has said it never intentionally shortens product life.

THROUGH THE TREE

Q1	A design decision. Yes.
Q2	Acts on the device, after sale. **A2.**
D1	Harm? Yes, slower phones.
D3	Forced? **Partly accepted**: batteries age, shutdowns are real.
D2	Disclosed with a choice? **Not at the time**; later yes.

> **Verdict.** The limit may stand; the silence may not. The 2018 switch and battery display are exactly the remedy the ruling asks for: *tell the owner, let him choose.*

Sources: Wikipedia, "Batterygate" (timeline, prices, iOS 11.3, settlements, Apple's statements); TechCrunch and AppleInsider reports of the French and Italian regulator fines (read as search summaries). Regulators' findings are cited as record, not as proof.

CASE · B

Revolv, 2016: a working device switched off

THE RECORD

- Revolv sold a smart-home hub that depended on the maker's servers. Nest (Alphabet) acquired Revolv in October 2014 and stopped selling and developing it.
- In April 2016 Nest announced that the hub and its app would stop working on **15 May 2016**. The hardware would cease to function.
- The hub had been sold with a "lifetime subscription"; Nest defined the lifetime as the lifetime of the *device*, which it then ended. The one-year warranty had expired.
- One trade-press report says affected owners were offered a refund or another remedy. A single source says so and it has not been confirmed.

THROUGH THE TREE

Q1	A choice of the maker. Yes.
Q2	Acts on the product? No: it acts on the service the product needs.
Q3	Does the owner need the maker's help? Yes. **B.**
D1	Harm? Yes, a working device is lost.
D3	Forced? A shut-down of an unmaintained service is a cost, not a necessity.

> **Verdict.** Ending a service is lawful with notice. Switching off a device for which a "lifetime" was sold, with a few weeks' warning, breaks the promise that set the price. Remedy: refund or compensation.

Sources: Wikipedia, "Google Nest"; VentureBeat and The Next Web reports of April 2016; CEPro commentary on a possible refund (read as search summaries). The notice period is the interval between the April announcement and 15 May.

CASE · C

John Deere, 2025–2026: repair tools kept to dealers

THE RECORD

- January 2025: the Federal Trade Commission and five states (Arizona, Illinois, Michigan, Minnesota, Wisconsin) sued Deere.
- The complaint alleged that Deere limited farmers' and independent shops' ability to repair its equipment: the only software tools able to perform all electronic repairs were offered to authorized dealers alone.
- 8 July 2026: a stipulated order was filed. For 10 years Deere must give farmers and independent repairers, on fair and reasonable terms, resources equal to those it gives dealers (fault codes, reprogramming, parts pairing, manuals) and must instruct its dealers not to discriminate or retaliate against customers who use them.
- The order takes effect when a court approves it. The press release does not say whether that has happened, or whether Deere admitted liability; a law-firm memo reports that it did not.

THROUGH THE TREE

Q1	A choice of the maker. Yes.
Q2	Acts on the product? No.
Q3	Does the owner need the maker's own help? No: the means could come from others.
	The maker closes them. **C.**
D2	Disclosed and accepted? The complaint alleges dependence on dealers; whether buyers were told at sale is not stated in the release.

> **Verdict.** An agreed order is not a finding. But the order's content, equal access without retaliation, is what the ruling requires: the maker may not close the owner's own power to repair.

Sources: FTC press release, 8 July 2026 (page opened); Paul Weiss client memo on the settlement (read as a search summary).

Doubts about the claim’s scope

1 · “Doesn’t this forbid cheap, short-lived products?” REJECTED

No. The ruling forbids hiding the limit, not having one. A short life, stated, is a lawful product, and a cheap one honestly described is a good choice for some buyers.

2 · “Who decides what a buyer ordinarily expects?” ACCEPTED IN PART

The custom of that kind of product among buyers and merchants (Mecelle 36–45), together with the maker’s own statements and advertising. Where custom is unclear, the maker ends the dispute by stating the life.

3 · “A maker cannot know a product’s exact life.” ACCEPTED IN PART

He need not state what he cannot know. He must state what he does know: rated cycles, design hours, planned support dates. Ignorance of the unknowable excuses; silence about the known does not.

4 · “Durability is just a feature the market can price.” REJECTED

Only a disclosed feature can be priced. A buyer cannot put a price on what he cannot see, and the market cannot punish a limit it does not know of.

Verdict on the doubt: REJECTED the doubt fails · ACCEPTED IN PART it holds within the limits the answer states · ACCEPTED it is right, and consistent with the ruling · OUT OF SCOPE not what the claim covers.

Doubts about software, security and updates

5 · “Software cannot be supported forever.” ACCEPTED IN PART

True. Hardship brings ease (Mecelle 17), so the maker may end support. He may not switch off a working device or forbid others to help.

6 · “Security sometimes requires dropping old hardware.” ACCEPTED IN PART

Then he says so, gives the owner the choice, and leaves the device able to run as it was. A real reason can be stated; a hidden one is not a reason.

7 · “Slowing an old battery protects the phone.” ACCEPTED IN PART

A protective measure is lawful if the owner is told and can choose. Silent, it is the wrong. Disclosed with a switch, it is honest. (Compare the Apple case.)

8 · “Must every update be approved one by one?” ACCEPTED IN PART

No. A general advance consent to improving updates is a real consent, and the owner can withdraw it. An update that reduces a function needs a specific one. PROBABLE

Doubts about proof and intent

9 · “You cannot prove the maker’s intent.” REJECTED

The ruling attaches to what can be shown: that he knew the limit (tests, design documents, rated lives), that he did not disclose it, and that the buyer lost. Inner motive is not needed. The burden of showing consent lies on the maker, who claims it (Mecelle 76).

10 · “Perhaps the short life was an accident of cost-cutting.” ACCEPTED IN PART

If the maker did not know, it is not planned and the claim does not apply. Once he learns of it and keeps selling, the choice is his. A cost-cutter who chose cheaper parts knew what he chose.

11 · “The market will punish cheaters.” REJECTED

A market can punish only what buyers can see. A hidden limit is the one thing they cannot see. The market is blind exactly where the ruling is needed.

12 · “Doesn’t intent matter?” ACCEPTED IN PART

It matters for blame and punishment (Mecelle 92–93; *taʿzīr*). It does not matter for whether the buyer must be told: that duty binds whoever knows.

Doubts about buyers, markets and contracts

13 · “Customers want a new model every year anyway.” REJECTED

Then telling them costs nothing, and a maker who is sure can say so. The only question is whether they were told.

14 · “Fashion makes old things feel obsolete.” OUT OF SCOPE

Fashion changes desire, not the old device. The claim covers acts on the device or on the means of keeping it working. If a maker lies, saying the old device is unsafe when it is not, that lie is deceit, but it is not what this talk is about.

15 · “Business buyers are sophisticated.” ACCEPTED IN PART

Their expertise makes more defects apparent to them, so the maker’s duty narrows to what they cannot see. It does not disappear.

16 · “What about leases and subscriptions?” ACCEPTED

Lawful as a lease (*ijāra*), if called a lease and priced as rent. If the buyer pays a price for ownership, the contract is a sale whatever it is called (Mecelle 3).

Doubts about the use of classical rulings

17 · “Why use classical rulings for a modern problem?” REJECTED

Rulings follow causes, not objects. The cause behind the udder ruling, a false appearance of a quality that sets the price, is present here, so the ruling is extended by analogy. That is the classical method, not a stretch.

18 · “Isn’t the harm hadith weak?” ACCEPTED IN PART

Graded differently by different scholars, and this talk says so. But the norm does not rest on that single text: it is a maxim of the Mecelle (19–20), it matches the Qur’anic rejection of harm (2:231), and N2 is argued from reason too.

19 · “May a seller set any condition?” REJECTED

Only conditions that are known and freely accepted, and the schools differ on restrictions on the buyer’s own property. A hidden condition passes under none of them.

20 · “Is this just your opinion?” REJECTED

Each step carries its mark. To reject the ruling a reader must reject a named premise or accept a defense; the next-to-last slide lists the cost of each.

Doubts about reach and effect

21 · “You gave the environment so little weight.” ACCEPTED

On purpose. The proof does not need it. Waste is marked as support only, so a reader who doubts the environmental claims loses nothing.

22 · “What if a cartel sets the limit?” REJECTED

The wrong is the same, and wider: buyers had no maker to turn to, so even a pretext of a free alternative fails. (The Phoebus case.)

23 · “What if the buyer is told, understands, and still buys?” ACCEPTED

Then the sale is lawful. That is the point: the ruling protects knowledge and choice, not a particular durability.

24 · “Does this make every maker a wrongdoer?” REJECTED

No. It makes concealment, remote disabling and closed repair without consent wrongful. A maker who tells the truth and leaves the owner in charge has nothing to answer for.

THE PROOF, SUMMED UP

The whole argument in one minute

1	A price pays for the life a buyer expects.
2	A maker who knows the product will give less, and says nothing, takes part of the price without consent. That is deceit, and the classical texts forbid it. (N1)
3	The same choice harms the buyer and profits the maker, with no right behind it. (N2)
4	What was sold is owned. Slowing, disabling or locking it from afar acts on another’s property. (N3)
5	Only five defenses exist: no harm, consent, necessity, entitlement, others’ benefit. Each fails, or only narrows the claim.
6	What stays lawful: an honest short life, support ended with notice, leases, restrictions the owner chose.
7	**So: tell the buyer, ask the owner, and leave him in charge.**

THE PROOF, SUMMED UP

What was shown, and how sure each step is

Step	Basis	Mark
The map: four leaves, and what lies outside the claim	Yes/no splits; nothing can fall between branches	CERTAIN
N1 Consent: wealth passes only by informed consent; so concealing a known limit takes part of the price wrongly	Reason (price means something only if N1 holds); Qur'an 4:29	CERTAIN
A hidden limit on life is a concealed defect (*tadlīs*)	Sound texts on deceit; analogy from the udder; Mecelle 67, 338	STRONG
N2 Harm: a choice that shortens life is harm without right	Reason; "no harm" hadith (disputed grades) and Mecelle 19–20	STRONG
N3 Ownership: remote control of a sold device needs informed permission	Mecelle 95–97, 100, 1192; the schools on conditions	STRONG
N4 Waste	Qur'an 17:26–27; hadith says *dislikes*	SUPPORT ONLY
No defense survives: five places, all answered	The yes/no tree; each leaf answered	STRONG
Disclosed and chosen restrictions on repair (leaf C)	The schools differ; the narrow view adopted	PROBABLE

The weakest link sets the mark. The ruling as a whole is STRONG, and in its core form, *concealing a known limit that sets the price*, it is CERTAIN.

THE PROOF, SUMMED UP

The price of rejecting the ruling

To reject the ruling you must…	…and then accept that
Deny that a buyer pays for what he expects (step 1.1).	A price carries no information. No one could rationally pay in advance for anything.
Deny that concealment removes consent (N1).	Fraud in any sale is consensual, since every victim of fraud "agreed."
Deny that this is harm (N2).	A seller may shift losses onto buyers whenever it pays him, if they are not told.
Say the sold device stays the maker's (N3).	Then it was a lease. The price was rent, the word "sale" was false, and the buyer should have been told.
Say the facts are absent in a given case (F1–F3).	Then the case is outside the claim, and the claim agrees with you. You must show it.
Accept a defense (D1–D5).	The answer already given to it, on the defense's own slide.

So the ruling is not shielded by authority. It is open to anyone who can name a premise to give up, and the cost is shown beside each one.

THE RULING IN FORCE

What is forbidden, what is required, what is permitted

Forbidden. To hide a limit on a product’s life or repair that the maker knows and the buyer does not. To slow, disable or lock a sold device, or to switch off a service it was promised, without the owner’s informed consent. To close the owner’s own means of repair beyond a narrow, stated safety need.

Required. To tell the buyer the designed life and the support period where he can see them. To name what an update does when it costs a function, and to offer a real choice. To announce the end of support in good time and leave the device working.

Permitted. Short-lived products honestly described. Budget and premium models together. Ending support with notice. Leases called leases. Updates under a general consent the owner can withdraw.

Remedy. Rescission or compensation for the buyer, restoration where the device was changed, and *taʿzīr* by the ruler.

LIMITS OF THE CLAIM

What this talk does not claim

- That every short-lived product is wrongful. A short life that the buyer knows of is a lawful product.
- That every maker intends harm. The ruling concerns the act: a known limit, hidden or imposed. Motive affects blame, not the duty to tell.
- That products must be repairable by everyone, or supported forever. The ruling asks for notice, honesty and leaving the owner in charge.
- That updates are forbidden. Updates are lawful under informed consent; only those that reduce a function need a specific one.
- That a ban would raise or lower the rate of innovation. That is an empirical question, and the proof does not depend on it.
- That fashion, advertising or taste are wrong. The claim concerns the device and the means of keeping it working.
- That the four public cases prove the ruling. They test the map; they illustrate the tree. The ruling stands on the principles.
- That any company is guilty today. Court and regulator records are cited as records, with their limits.

SOURCES

Primary texts and the classical rulings

- **Qur’an** 2:188; 2:231; 4:29; 17:26–27; 83:1 (checked on quran.com). Verse translations here are paraphrased from the English versions on that site.
- **Sahih Muslim** 101 (“whoever deceives us is not one of us”), 102 (the heap of grain), 593 (wasting wealth), 1515 (the unmilked animal). Checked on ihadis.com and prophetmuhammad.com.
- **Sahih al-Bukhārī** 2079 (Ḥakīm ibn Ḥizām: truthfulness and clarity bless a sale), 2148 (the unmilked animal), 2155 (the Barīra condition), 2408 (wasting wealth, with the chapter heading). Checked on prophetmuhammad.com.
- **Sunan Ibn Mājah** 2246 (ʿUqba ibn ʿĀmir: selling a defective item without pointing it out; graded *ṣaḥīḥ* by al-Albānī and Darussalam), 2340 and 2341 (“no harm”; grades disputed as stated). Checked on islamtics.com.
- **Sunan Abī Dāwūd** 3594 and **Jāmiʿ al-Tirmidhī** 1352 (Muslims are bound by their conditions, with the exception). Checked on prophetmuhammad.com.
- **Al-Nawawī**, *Forty Ḥadīth*, no. 32 (“no harm”, graded *ḥasan*), and **Mālik**, *al-Muwaṭṭaʾ* (a mursal narration): as reported by sunnah.com’s entry in a search summary; the page itself was not opened.
- **Mecelle-i Ahkâm-ı Adliyye** (1876), articles 1–100: text and wording from Ali Hikmet Berki’s annotated edition, as reproduced in M. Balcı’s simplified edition (muharrembalci.com). Articles 126, 338, 1192 and 1197: as cited in the TDV İslâm Ansiklopedisi.

SOURCES

Fiqh studies and public records

- **TDV İslâm Ansiklopedisi** (islamansiklopedisi.org.tr): “Ayıp” (defect, *hıyâr-ı ayb*, conditions, remedies); “Tağrîr” (deception, *gış*, *tedlîs*, ruling and verses); “Hile” (remedies of the schools, *taʿzīr*); “Şart (fürû-i fıkıh)” (conditions and the schools); “Mülkiyet” (full ownership and its limits); “Mal” (property; the Ḥanafī and majority view of benefits); “İsraf” (waste and the jurists’ difference).
- **Phoebus cartel:** Wikipedia, “Phoebus cartel” (page opened); M. Krajewski, “The Great Lightbulb Conspiracy,” *IEEE Spectrum*, 2014 (figures as quoted in secondary summaries; the article was not opened).
- **Apple:** Wikipedia, “Batterygate” (page opened); reports by TechCrunch, AppleInsider, Variety and The Washington Post of the French fine and the US settlements (read as search summaries).
- **Revolv:** Wikipedia, “Google Nest”; VentureBeat, The Next Web, eWeek and CEPro reports of April 2016 (read as search summaries).
- **John Deere:** Federal Trade Commission press release of 8 July 2026 (page opened); Paul Weiss client memorandum (read as a search summary).

> **How to read the status of a source.** “Page opened” means the page was fetched and the cited passage extracted from it. “Search summary” means only a summary returned by a search was read; check the claim at its source before repeating it as settled. The Mecelle articles 1–100 were read in full from the text cited on the previous slide.

GLOSSARY

Terms used in this talk

Term	Meaning in this talk	Term	Meaning
ʿayb	A defect: what lowers the value of the goods in the eyes of the experts.	***ʿilla***	The cause or reason on which a ruling rests.
tadlīs, ghish, taghrīr	Deceit in a sale: hiding a defect, or showing a quality that is not there.	***qiyās***	Extending a ruling from a decided case to a new case that shares its cause.
khiyār al-ʿayb	The buyer's option to rescind a sale because of a hidden defect.	***ʿurf***	Custom: what is settled and known in a trade.
taʿzīr	Discretionary punishment by the ruler.	***mubāshir / mutasabbib***	The direct actor / one who only causes the result (Mecelle 90–93).
ḍarar	Harm.	***ijāra***	Hire or lease: use for rent, without a transfer of ownership.
milk tāmm	Full ownership: of the thing and of its benefit.	***iḍāʿat al-māl***	Wasting wealth.